

THE CONSTITUTION (FIFTY-EIGHTH AMENDMENT) ACT, 1987

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Constitution and Amendments

THE CONSTITUTION (FIFTY-EIGHTH AMENDMENT) ACT, 1987

India

THE CONSTITUTION (FIFTY-EIGHTH AMENDMENT) ACT, 1987

Act 058 of 1987

Published in Gazette of India on 17 February 1987

Commenced on 9 December 1987

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[Note: The original publication document is not available and this content could not be verified.]

Statement of Objects and Reasons appended to the Constitution (Fifty-sixth Amendment) Bill, 1987 which was enacted as THE CONSTITUTION (Fifty-eighth Amendment) Act, 1987

STATEMENT OF OBJECTS AND REASONS

The Constitution of India was adopted by the Constituent Assembly in English. A Hindi translation of the Constitution, signed by the members of the Constituent Assembly, was also published in 1950 under the authority of the President of the Constituent Assembly in accordance with a resolution adopted by that Assembly.

2.

There has been a general demand for the publication of an authoritative text of the Constitution in Hindi incorporating therein all the subsequent amendments. It is also imperative to have an authoritative text of the Constitution for facilitating its use in the legal process. Any Hindi version of the Constitution should not only conform to the Hindi translation published by the Constituent Assembly, but should also be in conformity with the language, style and terminology adopted in the authoritative texts of Central Acts in Hindi. It is, therefore, proposed to amend the

Constitution so as to empower the President of India to publish under his authority the translation of the Constitution in Hindi signed by the members of the Constituent Assembly with such modifications as may be necessary to bring it in conformity with the language, style and terminology adopted in the authoritative texts of Central Acts in the Hindi language. The President would also be authorised to publish the translation in Hindi of every amendment of the Constitution made in English.

3.

The Bill seeks to achieve the aforesaid objects.

An Act further to amend the Constitution of India.

BE it enacted by Parliament in the Thirty-eighth Year of the Republic of India as follows:-

1.

Short title.-

This Act may be called the Constitution (Fifty-eighth Amendment) Act, 1987.

2. Amendment of the heading of Part XXII.-

In Part XXII of the Constitution, in the heading, after the word, "COMMENCEMENT", the words ", AUTHORITATIVE TEXT IN HINDI" shall be inserted.

3. Insertion of new article 394A.-

After article 394 of the Constitution, the following article shall be inserted, namely:-

"394A. Authoritative text in the Hindi language.-

(1)

The President shall cause to be published under his authority,-

(a)

the translation of this Constitution in the Hindi language, signed by the members of the Constituent Assembly, with such modifications as may be necessary to bring it in conformity with the language, style and terminology adopted in the authoritative texts of Central Acts in the Hindi language, and incorporating therein all the amendments of this Constitution made before such publication; and

(b)

the translation in the Hindi language of every amendment of this Constitution made in the English language.

(2)

The translation of this Constitution and of every amendment thereof published under clause (1) shall be construed to have the same meaning as the original thereof and if any difficulty arises in so construing any part of such translation, the President shall cause the same to be revised suitably.

(3)

The translation of this Constitution and of every amendment thereof published under this article shall be deemed to be, for all purposes, the authoritative text thereof in the Hindi language."

[The Constitution (Fifty-eighth Amendment) Act, 1987, brings about changes in the way the Constitution was written. Initially, the whole constitution was written in English, but with the introduction of the 58th Amendment, the provision to have a Hindi version of the Constitution came into force. Moreover, every subsequent amendment shall also be written in Hindi along with the English language and should have the same sanctity as that of the English version. The President holds the authority to bring about any changes in the Hindi translation if it does not obey the criteria set by Central Acts regarding the language, style, and terminology.

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